24STCV11259 24STCV11259

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-03

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Case Number: 24STCV11259 Hearing Date: August 3, 2026 Dept: 512

HEARING DATE: Mon., August 3, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Fidel

v. Dick Browning, Inc., et al. COMPL. FILED: 05-06-24

CASE NUMBER: 24STCV11259

FAC FILED: 03-20-26

NOTICE: OK

PROCEEDINGS: AMENDED

MOTION FOR APPROVAL OF REPRESENTATIVE ACTION SETTLEMENT

MOVING PARTY: Plaintiffs

Jaime Zamora Fidel and Jessy Vargas

RESP. PARTY: None

MOTION TO APPROVE PAGA SETTLEMENT

(Lab. Code, § 2699)

TENTATIVE RULING:

Plaintiffs’ Amended Motion for

Approval of Representative Action Settlement is GRANTED.

Moving parties are ordered to give

notice.

SERVICE:

[X] Proof of
Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address
(CCP §§ 1013, 1013a) OK

[X] 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 29, 2026 [ ] Late [X]
None

REPLY: None
filed as of July 29, 2026 [ ]
Late [X] None

ANALYSIS:

I.
Background

On May 6, 2024, Plaintiff Jaime Zamora Fidel (“Plaintiff”), as an individual and on behalf of all others similarly situated, filed a Complaint Under the Labor Code Private Attorneys General Act (“PAGA”) of 2004 for Civil Penalties Under Labor Code Sections 210, 226.3, 558, 1174.5, 1197.1, and 2699 against Defendants Dick Browning, Inc., Cerritos Dodge, Inc., Victorville Nissan, Inc., High Desert Autos, Inc., Dav, Inc., Vahl, Inc., Auto Square Autos, Inc., and Triangle Motors, Inc. (“Defendants”) and Does 1-100.

On October 3, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On March 20, 2026, Plaintiff filed a First Amended Complaint (“FAC”) against Defendants.

On April 27, 2026, Plaintiffs Zamora Fidel and Jessy Vargas filed a Motion for Approval of Representative Action Settlement (the “Motion”).

On June 29, 2026, the Court continued the hearing on the Motion due to various deficiencies and to allow Plaintiffs to file and serve supplemental papers addressing the deficiencies noted by the Court. (6/29/26 Order.)

On July 7, 2026, Plaintiffs filed and served Notice of Ruling.

On July 10, 2026, Plaintiffs filed the instant Amended Motion. In addition to the declarations filed in conjunction with the Motion, the Amended Motion is accompanied by supplemental Bibiyan, Zakay, Mendoza, and Patel declarations.

To date, no Opposition to the Amended Motion has been filed.

II. Procedural Issues

As an initial matter, the Court notes that the Notice of the Amended Motion incorrectly states the Amended Motion’s hearing date is June 29, 2026. (See Amended Motion, p. 2.)

However, given that the caption of the Amended Motion provides the correct hearing date for the Amended Motion (Amended Motion, p. 1) and Plaintiffs provided separate and proper notice of ruling of the Court’s 6/29/26 continuance of the Motion hearing date (7/7/26 Notice of Ruling), the Court finds notice of hearing is satisfactory and addresses the Amended Motion on the merits.

III. Legal Standard

Given that the pertinent PAGA notices in this matter were sent to the Labor and Workforce Development Agency (LWDA) prior to June 19, 2024, the Court applies certain PAGA requirements in effect prior to the new requirements established in 2024 by S.B. 92 and A.B. 2288.

Former Labor Code section 2699(l)(2) stated: “The superior court shall review and approve any settlement of any civil action filed pursuant to this part [Labor Code Private Attorneys General Act of 2004 (“PAGA”)]. The proposed settlement shall be submitted to the [Labor and Workforce Development Agency (“LWDA”)] at the same time that it is submitted to the court.”

An application for approval of such a settlement must demonstrate that the proposed settlement is fair, adequate, and reasonable to all those affected by it. ¿(Williams v. Superior Court (2017) 3 Cal.5th 531, 549; Nordstrom Com. Cases (2010) 186 Cal.App.4th 576, 579.)

In determining whether a settlement falls within the parameters of what may be considered fair, adequate, and reasonable, courts regularly rely on “ ‘ “the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement.” ’ ” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130, 131-132.) Other important indicia of fairness include arms’-length negotiations, experienced counsel, and an adequate investigation of the claims. (Id., at pp. 129-130.)

Formerly, seventy-five percent of all PAGA penalties must be paid to the LWDA. (See former Lab. Code, § 2699(i) [“Except as provided in subdivision (j), civil penalties recovered by aggrieved employees shall be distributed as follows: 75 percent to the Labor and Workforce Development Agency for enforcement of labor laws and education of employers and employees about their rights and responsibilities under this code, to be continuously appropriated to supplement and not supplant the funding to the agency for those purposes; and 25 percent to the aggrieved employees.”].) Courts have discretion to approve settlements that do not allocate any penalty amount. (Nordstrom Com. Cases, supra, 186 Cal.App.4th at p. 589).

Former Labor Code § 2699(g)(1) provided, in relevant part: "Any employee who prevails in any action shall be entitled to an award of reasonable attorney's fees and costs . . . ." (Lab. Code, § 2699(g)(1).)

IV.

Discussion

Plaintiffs move for approval of the parties' PAGA settlement.

The Agreement

Here, Plaintiffs provide evidence of Plaintiffs' counsel's experience and states that, after engaging in discovery and extended arms-length negotiations, including mediation, the parties were able to reach a settlement of Plaintiffs' PAGA claims. (See Amended Motion, Lapuyade Decl., ¶¶ 6-9, Exh. 1-2; Patel Decl., pp. 4-7.) The parties executed the PAGA Settlement Agreement in March 2026. (Amended Motion, Patel Decl., Exh. 1, pp. 21-22.) Pursuant to the settlement agreement, the parties agreed that Defendants would pay a total of $640,000 to settle the PAGA claims. (Amended Motion, Patel Decl., ¶ 5, Exh. 1, ¶ 3.1, Mendoza Decl., ¶ 4.) The parties have agreed to a proposed distribution of the $640,000 gross settlement as follows: (1) $211,200.00 for attorney's fees; (2) $26,363.83 for litigation costs; (3) $8,000.00 for settlement administration costs; (4) $20,000 for Plaintiffs' service payment, not to exceed $10,000.00 to each Plaintiff; and (5) the PAGA Payment—i.e., the amount remaining from the gross settlement amount after deducting attorney's fees, litigation costs, settlement administration costs, and Plaintiffs' service payment—for PAGA penalties wherein 75 percent would be paid to the LWDA and 25 percent would be paid to all aggrieved employees. (Amended Motion, pp. 9-10, Patel Decl., ¶¶ 4-6, Ex. 1, ¶ 3.2, Mendoza Decl., ¶ 4.)

With respect to the PAGA Payment, the Court finds that the distribution substantially complies with former Labor Code section 2699(i), which required 75 percent of the amount to be paid to the LWDA and 25 percent of the amount to be paid to the aggrieved employees, which here consists of "all individuals employed as non-exempt, hourly employees by Defendants

within the State of California during the period from February 23, 2023, through the date the Court grants approval of the Settlement ('PAGA Period'). Based on information provided by Defendants prior to mediation, Plaintiffs believe there are approximately 1,050 Aggrieved Employees in the PAGA Period." (Amended Motion, Patel Decl., ¶ 26, Exh. 1, ¶ 1.18.) The "estimated average payment to Aggrieved Employees is approximately $89.15 ($93,609.04 / 1,050 Aggrieved Employees)." (Amended Motion, Patel Decl., ¶ 28.)
Plaintiffs also understand there to be about 40,000 pay periods. (See Amended Motion, p. 15, Patel Decl., ¶ 42.)

The moving papers state the PAGA Payment totals $374,436.17 and is allocated as follows: $280,827.13 will be paid to the LWDA and $93,609.04 will be paid to the Aggrieved Employees on a pro rata basis using their respective number of pay periods worked during the settlement period. (Amended Motion, p. 9.) The Court finds these amounts satisfactorily reflect 75 percent of the net settlement amount to be paid to LWDA and 25 percent of the net settlement amount to be paid to the Aggrieved Employees. Further, these amounts match the amounts stated in the Proposed Order accompanying the Amended Motion (Proposed Order, p. 4) but are more than the amounts listed in the Settlement Agreement. (Amended Motion, Patel Decl., Exh. 1, ¶ 3.2.3.) However, the Court finds these differing amounts between all the moving papers and the Settlement Agreement are acceptable as the finalized amounts account for adjustments based on actual costs and/or the Court's approved settlement allocations, and the Settlement Agreement provides for some adjustment of the Settlement Amount in light of the Court's final approvals. (See Amended Motion, Patel Decl., Exh. 1, ¶ 3.2.) As such, the Court now finds the requested PAGA Payment to be acceptable.

As to the terms of the release, the Court finds the general release under the PAGA Settlement Agreement is fair and reasonable under the statute. The release as to the PAGA Group Members/aggrieved employees is appropriately limited to claims "for all PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint and the PAGA Notices" during the PAGA Period and with certain exclusions. (Amended Motion, Patel Decl., Exh. 1, ¶ 5.)

Attorney's Fees

Here, Plaintiffs' counsel provides

evidence of declarations describing Plaintiffs' counsels' background and experience and itemized billing charts. (Amended Motion, Bibiyan Decl., Zakay Decl., Lapuyade Decl., Seligson Decl., Ribiyan Decl., Patel Decls.)

Notably, the Amended Motion now includes the Zakay declaration that was omitted from the Motion filings.

The Amended Motion requests 33 percent of the Settlement Amount in fees or $211,200.00. (See Amended Motion, Bibyan Decl., Mendoza Decl., ¶ 4.) The fees, in pertinent part, are summarized as follows:

Plaintiffs' Counsel at Bibiyan Law Group, P.C., will have collectively worked approximately 330.7 hours. Plaintiffs' Counsel's hourly rate in this case for David D. Bibiyan is $1,100 per hour (approx. 31.7 hours); Jeff Klein is $1000 per hour (approx. 4.8 hours); Diego Aviles is $850 per hour (approx. 26.1 hours); Vedang J. Patel is $800 per hour (approx. 73.4 hours); Eric Naessig is $525 per hour (approx. 8.2 hours); Jasmin Aradi is $500 per hour (approx.. 141.3 hours); Keaton Mendoza is $450 per hour (approx. 17.2 hours); Paralegals are $200 per hour (approx. 16.5 hours); and Legal Assistants are $95 per hour (approx. 11.5 hours). At Bibiyan Law Group, P.C.'s hourly rates, this results in a total lodestar amount of $207,663. As indicated in the declaration of Shani O. Zakay, Zakay Law Group's total lodestar amounts to $10,800.00. As indicated in the declaration of Jean-Claude Lapuyade, JCL Law Firm's total lodestar amounts to $1,605.00. As indicated in the declaration of Kenneth Seligson, Seligson Law's total lodestar amounts to $49,739.33. Thus, the total lodestar for Plaintiffs' counsel amounts to $269,807.33.

(Amended Motion, pp. 20-21, Lapuyade Decl., Seligson Decl., Bibiyan Decl., Patel Decl., Zakay Decl.)

Counsel's work included drafting the Complaint, First Amended Complaint, Notice of Settlement, Motion and Amended Motion in this matter; meeting and conferring with defense counsel; attending meetings; consulting with experts; reviewing correspondence; and engaging in mediation and discussions regarding mediation. (Amended Motion, Lapuyade Decl., Seligson Decl., Bibiyan Decl., Patel Decl., Zakay Decl.)

Given the total attorney work done in

this matter – including multiple iterations of the complaint, multiple iterations of the instant Motion, discovery, and mediation – the Court finds Plaintiffs' updated request for an attorney's fees award totaling $211,200.00 is reasonable.

Plaintiffs' counsel also provides itemized billing invoices as to the $26,363.83 in costs associated with this action. (Amended Motion, Bibiyan Decl., Exh. 1; Lapuyade Decl., Exh. 2; Seglison Decl.; Zakay Decl., Exh. C.) Costs in this matter include court filing fees, service fees, case document purchase, expert data consultant, postage, and photocopies. Upon review of these records, the Court finds these costs to be reasonable.

Plaintiffs' Service Payment

As to Plaintiffs' service payment, Plaintiff Vargas provided a declaration setting forth the actions Plaintiff Vargas undertook in litigating this action, including:

Communicating with my attorneys regarding the facts of my employment and Defendants' practices; providing documents and information to support the claims in this case; Assisting counsel in understanding workplace practices and identifying violations; Reviewing pleadings and case developments; Staying informed about the status of the case and participating in discussions regarding strategy and resolution. I devoted approximately 23 hours to assisting with this case.

(Amended Motion, Vargas Decl., ¶¶ 7-8.) Plaintiff Fidel also provided a declaration setting forth the actions Plaintiff Fidel undertook in litigating this action, including:

I have spent at least 27 hours in connection with this matter, which included time spent having preliminary calls with my attorneys; doing an intake with my attorneys; time spent searching for documents relating to my employment; time spent reading and understanding the Settlement Agreement; time spent answering calls to discuss Defendants' timekeeping, pay, meal and rest periods, and to review time and payroll records; time spent discussing with my attorneys' Defendants' policies and practices; time spent on-call at mediation;

and time spent checking in on the status of the case, among other things. I also spent time preparing this declaration to support Plaintiffs' Motion for Approval of Representative Action Settlement.

(Amended Motion, Fidel Decl., ¶ 14.) The Court finds Plaintiffs' service payments to be reasonable.

With respect to the settlement administration costs, Plaintiffs have submitted an estimate from settlement administrator ILYM Group, Inc. showing that costs are $7,350.00. (Amended Motion, Rogers Decl., ¶ 7, Exhs. A-C.) Given the estimate shows costs are $7,350.00, the Court approves $7,350.00 in settlement administrator costs.

LWDA Service Requirement

As to the LWDA service requirement, Plaintiffs submitted evidence demonstrating Plaintiffs' counsel submitted a copy of the Settlement Agreement to the LWDA on April 27, 2026. (Amended Motion, Patel Decl., Exh. 5.)

Based on the foregoing, the Motion is GRANTED.

V. Conclusion & Order

For the foregoing reasons, Plaintiffs' Amended Motion for Approval of Representative Action Settlement is GRANTED.

Moving parties are ordered to give notice.